

“conclusions of fact or law, opinions, speculation, or allegations contrary to law or judicially noticed facts.” (*Spencer*, 88 Cal.App.5th at 861.)

A cause of action for negligence requires plaintiff to allege: (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff's damages or injuries. (*Thomas v. Stenberg* (2012) 206 Cal.App.4th 654, 662.) Based on its review of the complaint in its entirety the court fails to sufficiently allege the necessary elements for a claim for negligence including that defendant owed plaintiff a legal duty which was breached, and which breach proximately or legally caused plaintiff's damages or injuries.

The motion is granted with leave to amend. Any amended complaint shall be filed and served on or before **September 18, 2026**.

12. S-CV-0054972 Dunk N' Run Donuts v. Toyota Motor Sales

Plaintiffs are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Attorneys' Fees

Plaintiffs move for an award of attorneys' fees in the amount of \$36,362.50 (\$34,862.50 in incurred fees and \$1,500 in anticipated fees) and costs of \$1,095.06 for a total of \$37,467.56. Defendant opposes the motion.

Defendant's objections are overruled in their entirety.

A prevailing party in an action under the Song-Beverly Consumer Warranty Act (Civ. Code, §§ 1790 et seq.) shall recover costs and expenses, including attorneys' fees actually incurred, “determined by the court to have been reasonably incurred . . .” (Civ. Code, § 1794, subd. (d).) A prevailing party includes “the party with a net monetary recovery” or one who “realized its litigation objectives,” including in instances of settlement. (Code Civ. Proc., § 1032, subd. (a)(4); *Kim v. Euromotors West/The Auto Gallery* (2007) 149 Cal.App.4th 170, 179–80.) Here, plaintiffs present evidence that the parties reached a settlement providing for defendant's buyback of the subject vehicle and that defendant would pay plaintiffs' attorneys' fees and costs actually incurred as determined by the court. (Ryu Decl., ¶¶ 2, 32.) While plaintiffs did not provide a copy of the settlement agreement, defendant concedes settlement occurred and provides a copy of the agreement. (Fisher Decl., Exh. B.) The court finds plaintiffs are the prevailing party, having obtained the objective of this litigation, and is entitled to seek an award of attorneys' fees pursuant to Civil Code section 1794(d).

The court must next address whether the request for \$36,362.50 in attorneys' fees is reasonable. Determining the reasonable amount of attorneys' fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano*

v. Priest (Serrano III) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler, supra*, 22 Cal.4th at p. 1095.)

The court has carefully considered the declaration of counsel Ryu. Plaintiffs' counsel's firm charged hourly rates ranging from \$350 to \$625 per hour for attorneys, \$200 to \$250 for paralegals, and \$125 for support staff. The court finds a reduction in hourly rate is required in light of the cost of comparable legal services in Placer County for a case of this nature. The court finds an hourly rate of \$450 is a reasonable rate for counsel Aryan Sarbaz, \$400 is a reasonable rate for counsel Ezra G. Ryu and for counsel Christopher Im, and \$350 is a reasonable rate for counsel Astrid Souto. The court finds \$150 is a reasonable rate for paralegal services and \$100 is a reasonable rate for other support staff who are not paralegals or attorneys. While plaintiffs present evidence that Udayan Singla is a foreign-licensed attorney working in the office, it does not appear that this individual is Barred in the State of California and no application for *pro hac vice* has been filed or granted. Given the state of the evidence, the court limits this individual's reasonable rate to \$100 as well. Plaintiffs' counsel's firm requests \$200 per hour for a Case Resolution Manager, but as this individual appears to not be an attorney or a paralegal, this individual's hourly rate is likewise reduced to \$100.

Turning next to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the declaration of counsel Ryu and Exhibit 8 thereto which supports 100.9 hours expended between all attorneys, paralegals, and support staff. Defendant urges the court to make 15% reductions from the overall amounts because of (1) the inefficiency of spreading work across so many individuals and (2) repetitive billing. The court declines defendant's invitation and instead has spent considerable time with the invoice in Exhibit 8 to determine what fees were reasonably incurred. The court observes several instances where the work does not appear necessary for the prosecution of the case (for example, organizing folders and preparing for a Case Management Conference when no appearance was required or requested for that Case Management Conference), instances where the work appears duplicative between multiple attorneys or between attorneys and other staff (for example, where two attorneys each drafted repair chronologies), and instances where there is an insufficient explanation of the work performed for this court to determine if the work was reasonably necessary (for example, "Updates to dos for case"). With these observations in mind, the court determines a reduction of hours is necessary and finds 53.1 total hours (between all counsel, paralegals, and support staff) to be reasonable.

As to costs, plaintiffs seek costs of \$1,095.06 and provides the declaration of counsel Ryu and an invoice of those costs as Exhibit 9 thereto. Exhibit 9 does not adequately explain some of the costs requested. Together with their reply brief, plaintiffs submitted the declaration of Maro Orte and invoices and receipts as Exhibit A thereto. Exhibit 9 to the Ryu declaration together with Exhibit A to the Orte declaration provide sufficient evidence for the costs requested with two exceptions. First, Exhibit 9 includes an item for \$15.50 for a Los Angeles County Superior Court appearance cost. As this case originated and has always pended in Placer County, the court declines to award this amount.

Second, Exhibit 9 includes an item for \$16.28 for a court appearance on September 4, 2025. However, September 4, 2025 was the date of oral argument for the demurrer when oral argument was not requested and the tentative ruling was adopted without hearing. The court declines to award this amount. Costs are otherwise awarded in the amount of \$1,063.28.

Accordingly, plaintiffs' motion is granted in part. Plaintiffs are awarded attorneys' fees of \$16,035 and costs in the amount of \$1,063.28 for a total of \$17,098.28.

As the parties have settled, the court on its own motion vacates the October 20, 2026 case management conference and schedules instead an order to show cause hearing regarding dismissal on **October 20, 2026 at 9:00 a.m. in Department 32.**

13. S-CV-0056043 Hill Top Cntr. v. Kelly Architectural & Planning

The motion to compel responses is continued to **September 15, 2026 at 8:30 a.m. in Department 32.**

14. S-CV-0056372 In re the petition of Barber, Chloe

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1337-38.)

15. S-CV-0056512 Jamis-Dow, Carlos v. Vector

Motion for Alternative Service

Plaintiff seeks a court order authorizing mailed service to defendant Vector Construction Development, a Corporation ("Vector") pursuant to Code of Civil Procedure section 413.30. No opposition has been filed.

Code of Civil Procedure section 413.30 provides a court may direct an alternate manner of service "if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter." Here, plaintiff has submitted insufficient evidence of diligence.

While plaintiff's evidence includes Vector's Statement of Information including three different addresses (a Sacramento address as the corporation's principal address, another Sacramento address as the mailing address for the corporation, an Auburn address as the address for the agent for service of process), plaintiff presents no evidence of attempts to serve at these three addresses by service of acknowledgment and receipt pursuant to Code